the colonial ideologies and racial hierarchies impact in the “civilising mission” and central to the imperial experience’.[3] It is worth observing here, however, that what was instrumental in this ‘civilising mission’ and ‘colonial experience’ was an elaborate artifice of the law and judicial administration. It is this which, I would suggest here, is the source of the development of law as a form of coercive colonial legalism. He goes on to explain that the ‘[c]onstruction of the enemy as “un-civilised”, “savage”, or “fanatic” had severe implications for the conduct of what became known as savage warfare; it dictated and justified techniques of violence that were by the same token considered unacceptable in conflicts between so-called “civilised” nations’. By this standard, a trial that would have been deemed utterly unacceptable and repugnant in Britain was considered to be justified in the execution of Bhagat Singh and was in fact so endorsed by the UK Privy Council in 1931,[4] despite there being no right of appeal in India for a man who was condemned to death by hanging on the gallows.

To justify this differential treatment, colonial imperial doctrine and practice relied on ‘cultural knowledge’. But as Wagner explains, ‘Cultural knowledge was not simply a facet of imperialism; it was an organizing principle underwriting the rule of colonial difference according to which “un-civilised” people had to be treated by different standards.’ It was in this way that ‘the rule of colonial difference informed savage warfare at every level during the high-point of Empire’. Bhagat’s Singh’s trial took place at a time when that high-point was under sustained challenge in India and was in fact very much beginning to creak. This is why colonial people had to be treated differently, such that ‘[f]rom the sordid everyday beatings or rape of labourers and servants, to the exemplary execution and spectacular massacres of rebels – whether routine or exceptional – colonial violence relied on the same logic of difference, insisting that brute force was the only language “natives” understood’.[5] Mark Condos too has recently explained how colonial power in British India was consolidated through ‘colonial terror’ and that the Amritsar Massacre of 1919 ‘could be read as the ultimate expression of colonial power’ because ‘what could be more evocative of the brute strength of colonial domination than the ability to